

This Agreement is entered into as of **04/18/2025**, by and between **APT-Ability LLC, dba MobileSentry**, a Virginia corporation with its principal place of business at **11101 University Blvd, Manassas, VA 20110** ("MobileSentry"), and **Tech Medics (Anartwork LLC)** a **Georgia** **LLC** with its principal place of business at **3764 BLOOMFIELD VILLAGE DR** ("Store").

WHEREAS, MobileSentry is an authorized distributor of Apple Genuine Parts under the Genuine Apple Parts Program (GAPP);

WHEREAS, the Store wishes to participate in GAPP and agrees to the terms and conditions herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the parties agree as follows:

1. Program Participation

1.1

Customer shall purchase Service Parts from Parts Distributor for the purpose of Repair Services and will not: (i) engage in any illegal, false, or deceptive acts or practices; (ii) export any Service Parts outside the Territory or permit any other person to do so; or (iii) engage in the sale or distribution of any Service Parts, unless required by law.

1.2

Customer will not make or issue any representations, warranties, or guarantees with respect to the specifications, features, or capabilities of any Genuine Apple Part or Service Parts that are inconsistent with Apple's end user license agreements and any technical specifications provided by Apple for any Genuine Apple Part or Service Part.

1.3

Customer is not a representative of Apple or an Apple Authorized Service Provider and will not imply authorization, certification by, or any affiliation with Apple. Customer may not directly or indirectly market any repair services as Apple-certified, Apple-approved, Apple-endorsed or similar. Customer may refer to Service Parts acquired from Parts Distributor as "Genuine Apple Parts purchased from Apple."

2. Core Return Obligations

2.1

The Store acknowledges that not all Apple Genuine Parts will require the return of corresponding core parts. The requirement for a core part return will be communicated to the Store at the time of purchase, ensuring the Store is fully aware when a core return is necessary.

2.2

For products that do require a core return, the Store agrees to return all such cores in accordance with the timelines and procedures set forth by MobileSentry. Failure to return the core parts within the designated timeframe will result in additional charges, which the Store agrees to pay.

2.3

The Store acknowledges that MobileSentry reserves the right to charge the credit card on file for any unpaid fees related to unreturned core parts.

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3. Payment and Fees

3.1

The Store authorizes Mobilesentrrix to charge the credit card on file for all purchases made under this Agreement, including any additional fees or penalties incurred due to late payment or failure to return core parts.

3.2

The Store acknowledges that if it wishes to change the credit card on file, it must notify Mobilesentrrix immediately.

3.3

If a payment does not go through on the first attempt, a penalty of two percent (**2%**) will be applied to any subsequent payment attempts.

3.4

The Store owner acknowledges and agrees that they are fully responsible for ensuring that all payments are successfully completed. If a payment remains uncollectible, Mobilesentrrix reserves the right to pursue legal action against the Store owner to recover the owed funds, including seeking remedy through the courts if necessary.

3.5

The Store agrees that Mobilesentrrix may offset any amounts owed by the Store against any amounts payable by Mobilesentrrix to the Store.

4. Program Pricing

4.1

Stores will receive an upfront conditional discount on parts, based on the assumption of timely core returns as per the agreed schedule.

4.2

Stores will be charged the difference between the discounted and regular rates if parts are returned outside of the core return window, or if they are not returned at all.

4.3

The Store acknowledges the importance of monitoring core returns actively to avoid additional charges.

5. Product Warranty and Availability

5.1 Return Policy

Products purchased under the Genuine Apple Parts Program can be returned within six (6) months for a full refund, provided that the part has not been consumed or used.

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5.2 Exclusions from Return

- **Physical Damage:** If the part has any physical damage caused by the end user or damage resulting from installation, the part will not be eligible for return.
- **Used Parts:** If the part has been used, it may be considered for return only in cases where there is a functional problem. These cases will be handled on a case-by-case basis, with communication between the Store and Mobilesentrrix to determine eligibility.

5.3 Warranty Exclusion

These parts are outside the Mobilesentrrix warranty and coverage program as they are considered genuine Apple parts. As such, they are subject to Apple's warranty policies, and Mobilesentrrix is not responsible for any warranty claims related to these parts.

6. Indemnification

6.1

The Store agrees to indemnify, defend, and hold harmless Mobilesentrrix and Apple Inc. from any claims, damages, liabilities, or costs (including reasonable attorney's fees) arising from the Store's participation in GAPP or its use of Genuine Apple Parts.

7. Termination of Participation

7.1 General Termination

Either party may terminate this Agreement with thirty (30) days' prior written notice.

7.2 Termination Due to Apple Contract Termination:

Mobilesentrrix reserves the right to terminate this Agreement immediately if its contract with Apple for the Genuine Apple Parts Program is terminated.

7.3 Termination for Cause:

Mobilesentrrix may also terminate this Agreement immediately if the Store is deemed, at Mobilesentrrix's sole discretion, not fit for participation in the GAPP program.

7.4 Immediate Termination for Breach:

Mobilesentrrix reserves the right to terminate this Agreement immediately if the Store fails to comply with any terms and conditions outlined herein.

8. Miscellaneous

8.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Virginia.

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8.2 Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

8.3 Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements or understandings, whether written or oral, regarding the subject matter herein.

8.4 Amendments

Any amendments or modifications to this Agreement must be in writing and signed by both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first above written.

Seller

Apt-Ability DBA Mobilesentrix

Signature



Printed name

Saad Javed

Title

Chief Executive Officer

Date

04/18/2025

Buyer

Tech Medics (Anartwork LLC)

Signature



Printed name

Adham Nadi

Title

Owner

Date

04/18/2025

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